

M/S M.R Proview Realtech Private Limited v. State of U.P. & 3 Others

High Court of Judicature at Allahabad · Division Bench · 9 November 2021 (interim order; order-sheet 9.11.2021 to 20.3.2026, writ petition pending) · WRIT - C No. - 22273 of 2021 · **Writ petition pending; not finally decided. The petition — challenging clause 4.9 of the Electricity Supply Code (Thirteenth Amendment), 2018 as ultra vires the Electricity Act, 2003 and the Electricity (Removal of Difficulties) Eighth Order, 2005, and the consequent notice dated 28 July 2021 — was, by order dated 9 November 2021, tagged with the leading Writ Petition No. 4545 of 2019 to be heard as a bunch, with interim protection that no further action be taken pursuant to the notice dated 28 July 2021. That interim order was extended from time to time; as of the last recorded order (20 March 2026) the matter remained pending and listed with the connected cases.**

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HEADNOTE

Order-sheet record of a pending writ petition by a realty company challenging clause 4.9 of the Electricity Supply Code (Thirteenth Amendment), 2018 (notified 10 August 2018) as ultra vires the Electricity Act, 2003 and the Electricity (Removal of Difficulties) Eighth Order, 2005, and seeking to quash a notice dated 28 July 2021 issued under that provision and to restrain coercive action pursuant to the amendment and notice. By order dated 9 November 2021 the Division Bench (Sunita Agarwal and Krishan Pahal, JJ.) recorded that the issue was the subject matter of a bunch of writ petitions led by Writ Petition No. 4545 of 2019, directed that this petition be heard with that bunch, and provided that till the next date of listing no further action be taken pursuant to the notice dated 28 July 2021. The interim protection was extended on successive dates through 2022 to 2026 as the matter travelled through many benches, including the Chief Justice's Court. The vires of clause 4.9 and the validity of the notice were not decided and remain pending in the bunch.

FACTUAL SUMMARY

M/S M.R Proview Realtech Private Limited filed Writ - C No. 22273 of 2021 before the Allahabad High Court seeking: (i) a declaration that clause 4.9 of the Electricity Supply Code (Thirteenth Amendment), 2018 — notified by the UPERC on 10 August 2018 — is ultra vires the provisions of the Electricity Act, 2003 and the Electricity (Removal of Difficulties) Eighth Order, 2005; (ii) certiorari quashing a notice dated 28 July 2021 issued from the office of the fourth respondent; and (iii) prohibition restraining the respondents from taking any coercive measures pursuant to the Thirteenth Amendment and the consequent notice. On 9 November 2021 the Division Bench noted that the same issue was pending in a bunch of writ petitions, the leading matter being Writ Petition No. 4545 of 2019, and directed that this petition be posted and heard along with that bunch, the parties to exchange affidavits; it provided that, till the next date of listing, no further action be taken pursuant to the notice dated 28 July 2021. The interim protection was thereafter extended on each successive listing as the matter passed through numerous Division Benches, including the Chief Justice's Court; the record runs to 20 March 2026, by which date the petition remained pending and tagged with connected cases (including Writ-C No. 17587 of 2023). No decision on the merits appears on the record.

REUSABLE CONSTRUCTIONS

1. A challenge to the vires of a Supply Code provision — here clause 4.9 of the Electricity Supply Code (Thirteenth Amendment), 2018 — as exceeding the Electricity Act, 2003 and the Electricity (Removal of Difficulties) Eighth Order, 2005 may be tagged with the leading writ petition raising the same issue (Writ Petition No. 4545 of 2019) and heard together as a bunch. **order of 09.11.2021**
2. Pending the bunch hearing of such a vires challenge, interim protection may be granted restraining any further action on the notice issued under the impugned provision, and extended from listing to listing. **order of 09.11.2021**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

OBITER

Interim protection against a notice issued under clause 4.9 (13th Amendment), pending a bunch challenge to its vires

QUESTION

Pending a bunch challenge to the vires of clause 4.9 of the Electricity Supply Code (Thirteenth Amendment), 2018, should coercive action on the consequent notice be restrained?

HOLDING

The Division Bench, recording that the issue was the subject matter of a bunch of writ petitions led by Writ Petition No. 4545 of 2019 and directing that this petition be heard along with that bunch, provided that till the next date of listing no further action be taken pursuant to the notice dated 28 July 2021 issued under the impugned amendment. That interim protection was extended from time to time over the following years, the writ remaining pending; the vires of clause 4.9 was not decided. **order of 09.11.2021**

QUALIFIER

Interlocutory; the petition was tagged with a leading bunch and the vires question left undecided and pending.

EVIDENCE *“The issue being raised herein is subject matter of consideration in a bunch of writ petition leading being writ petition No. 4545 of 2019.”* **order of 09.11.2021**

EVIDENCE *“It is provided that till the next date of listing, no further action shall be taken pursuant to the notice dated 28.7.2021 issued by the respondent No. 3.”* **order of 09.11.2021**

FLAG Long order-sheet (9.11.2021 to 20.3.2026) without printed page numbers or numbered paragraphs; pins are order dates. Coram is the bench that passed the substantive order dated 9.11.2021; the interim protection was extended by many later benches, including the Chief Justice's Court. Petitioner is a realty company.

PRINCIPLE TAGS

supply-code-regulation-cannot-exceed-parent-act-s174-overriding The petitioner challenges clause 4.9 of the Supply Code (Thirteenth Amendment), 2018 as ultra vires the Electricity Act, 2003 and the Electricity (Removal of Difficulties) Eighth Order, 2005 — i.e., subordinate legislation exceeding its parent Act; interim protection was granted pending the bunch, the vires question being left for decision. **order of 09.11.2021**

interim-protection-pending-vires-challenge-to-supply-code-amendment Till the next date of listing, no further action was permitted on the notice dated 28 July 2021 issued under the impugned Thirteenth Amendment, and the protection was extended on successive dates while the bunch challenge remained undecided. **order of 09.11.2021**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.9 OF THE ELECTRICITY SUPPLY CODE (THIRTEENTH AMENDMENT), 2018 IS ULTRA VIRES THE ELECTRICITY ACT, 2003 AND THE ELECTRICITY (REMOVAL OF DIFFICULTIES) EIGHTH ORDER, 2005, AND WHETHER THE NOTICE DATED 28 JULY 2021 ISSUED THEREUNDER IS LIABLE TO BE QUASHED

Left undecided; the petition was tagged with the leading Writ Petition No. 4545 of 2019 to be heard as a bunch, interim protection being granted and extended. The question remained pending as of the last recorded order (20 March 2026). [SCJ-2099] **order of 09.11.2021**

RELATED CASES — SEE ALSO

SCJ-2099 — The same challenge: a writ attacking the Electricity Supply Code (Thirteenth Amendment), 2018 as ultra vires the Electricity Act, 2003, connected with the very leading Writ-C No. 4545 of 2019 with which this petition was tagged.

SCJ-678 — Spine sibling on the principle that a Supply Code regulation cannot exceed the parent Electricity Act, 2003 (Section 174 overriding) — the doctrinal foundation of the vires challenge to clause 4.9 raised here.

SCJ-090 — On the pleading discipline required to sustain a vires challenge to a Supply Code provision — the class of challenge (to clause 4.9 of the Thirteenth Amendment) awaiting decision in this bunch.